



INDIAN POLITY

DEVICES OF PARLIAMENTARY PROCEEDINGS

MODULE – 66



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MOTIONS



- 1** A motion indicates a proposal made by a Member of the Parliament. It is **moved to ascertain the will of the House.**
- 2** No discussion on a matter of general public importance can take place **except on a motion made with the consent of the presiding officer.**
- 3** The House expresses its decisions or opinions on **various issues through the adoption or rejection of motions** moved by either ministers or private members.

MOTIONS

4 The motions moved by the members to raise discussions on various matters fall into three principal categories:

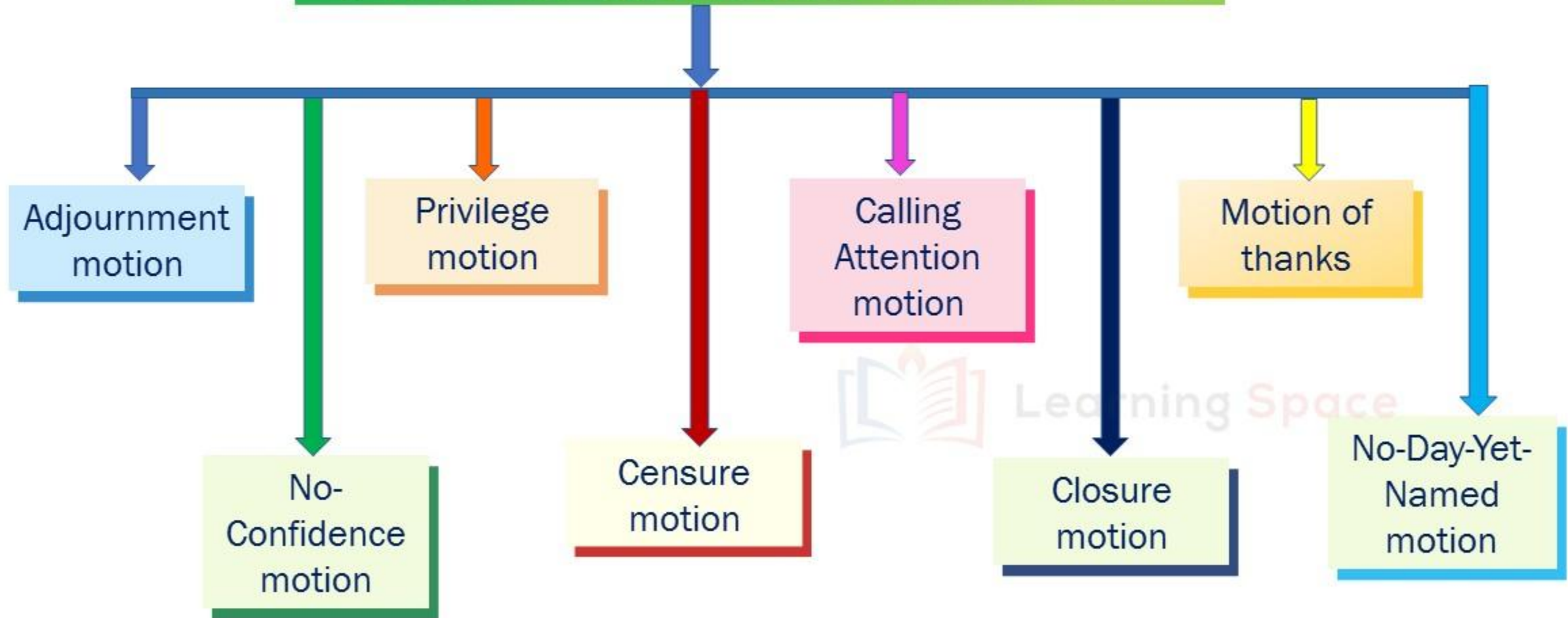
- 1) SUBSTANTIVE MOTION:** It is a **self-contained independent proposal** dealing with a very important matter like impeachment of the President or removal of Chief Election Commissioner.
- 2) SUBSTITUTE MOTION:** It is a motion that is **moved in substitution of an original motion** and proposes an alternative to it. If adopted by the House, it supersedes the original motion.

MOTIONS

4 The motions moved by the members to raise discussions on various matters fall into three principal categories:

- 3) **SUBSIDIARY MOTION:** It is a motion that, by itself, has no meaning and cannot state the decision of the House without reference to the original motion or proceedings of the House. It is divided into three sub-categories:
- a) **ANCILLARY MOTION:** It is used as the regular way of proceeding with various kinds of business. Eg: (i) That the Bill be taken into consideration. (ii) That the Bill be passed.
 - b) **SUPERSEDING MOTION:** It is moved in the course of debate on another issue and seeks to supersede that issue. Eg: (i) That the Bill be re-committed to a Select Committee. (ii) That the Bill be re-committed to a Joint Committee of the Houses. (iii) That consideration of the Bill or the debate on the Bill be adjourned sine die or to some future date.
 - c) **AMENDMENT:** It seeks to modify or substitute only a part of the original motion.

TYPES OF MOTION IN PARLIAMENT



MOTIONS

CLOSURE MOTION

1 It is a motion moved by a member to **cut short the debate** on a matter before the House.

2 If the motion is approved by the House, debate is stopped forthwith and the matter is put to vote.

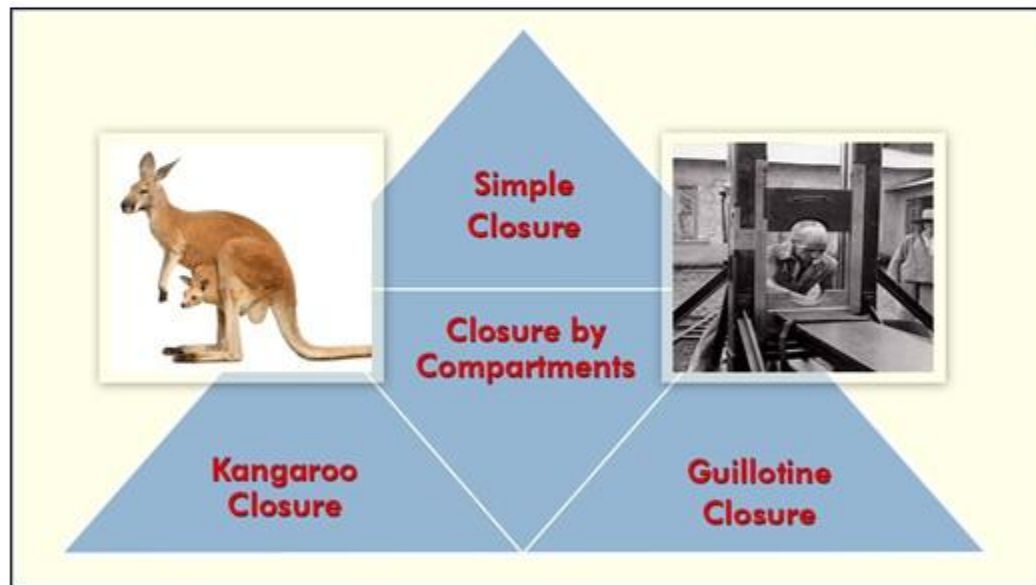
3 There are four kinds of closure motions:

- 1. SIMPLE CLOSURE:** It is one when a member moves that the 'matter having been sufficiently discussed be now put to vote'.
- 2. CLOSURE BY COMPARTMENTS:** In this case, the **clauses of a bill or a lengthy resolution are grouped into parts** before the commencement of the debate. The debate covers the part as a whole and the entire part is put to vote.

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CLOSURE MOTION



3. **KANGAROO CLOSURE:** Under this type, only **important clauses are taken up for debate and voting** and the intervening clauses are skipped over and taken as passed.
4. **GUILLOTINE CLOSURE:** It is one when the undiscussed clauses of a bill or a resolution are also put to vote along with the discussed ones due to want of time (as the time allotted for the discussion is over).

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PRIVILEGE MOTION



- *There was a privilege motion raised against PM on the Rafale issue recently*
- *Parliamentary Privileges are special rights, immunities and exemptions enjoyed by the 2 Houses , their committees and their members.*

1

It is concerned with the breach of parliamentary privileges.

2

It is moved by a member when he feels that a person has committed a breach of privilege of the House or one or more of its members by withholding facts of a case or by giving wrong or distorted facts.

DEVICES OF PARLIAMENTARY PROCEEDINGS

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CALLING ATTENTION MOTION



- 1 It is introduced in the Parliament by a member to **call the attention of a minister to a matter of urgent public importance**, and to seek an authoritative statement from him on that matter.
- 2 Like the zero hour, it is also an **Indian innovation** in the parliamentary procedure and **has been in existence since 1954**.
- 3 However, unlike the zero hour, it is mentioned in the Rules of Procedure.

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ADJOURNMENT MOTION



- 1 It is introduced in the Parliament to draw attention of the House to a definite matter of urgent public importance, and needs the support of 50 members to be admitted.

- 2 As it interrupts the normal business of the House, it is regarded as an extraordinary device.

- 3 It involves an element of censure against the Government and hence Rajya Sabha is not permitted to make use of this device.

- 4 The discussion on an adjournment motion should last for not less than two hours and thirty minutes.

It should be restricted to a **specific matter of recent occurrence** and should not be framed in general terms.

It should **not raise a question of privilege**.

It should not **revive discussion** on a matter that has been discussed in the same session.

It should not deal with any matter that is under **adjudication by court**.

It should not raise any question that can be **raised on a distinct motion**.

It should not cover **more than one matter**.

It should raise a matter which is **definite, factual, urgent and of public Importance**.

The right to move a motion for an adjournment of the business of the House is subject to the following restrictions:

ADJOURNMENT MOTION

NO-CONFIDENCE MOTION



TDP moved no-confidence motion in Parliament in March 2018

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CENSURE MOTION



A censure motion is different from a no-confidence motion as shown in Table

CENSURE MOTION	NO-CONFIDENCE MOTION
It should state the reasons for its adoption in the Lok Sabha.	It need not state the reasons for its adoption in the Lok Sabha.
It can be moved against an individual minister or a group of ministers or the entire council of ministers.	It can be moved against the entire council of ministers only.
It is moved for censuring the council of ministers for specific policies and actions.	It is moved for ascertaining the confidence of Lok Sabha in the Council of Ministers.
If it is passed in the Lok Sabha, the council of ministers need not resign from the office.	If it is passed in the Lok Sabha, the council of ministers must resign from the office.

MOTIONS

MOTION OF THANKS



- 1 The first session after each general election and the first session of every fiscal year is addressed by the President.
- 2 In this address, the President outlines the policies and programmes of the government in the preceding year and ensuing year.
- 3 This address of the president, which corresponds to the 'speech from the Throne in Britain', is discussed in both the Houses of Parliament on a motion called the 'Motion of Thanks'.

DEVICES OF PARLIAMENTARY PROCEEDINGS

MOTIONS

MOTION OF THANKS



4 At the end of the discussion, the motion is put to vote. **This motion must be passed in the House.**

5 Otherwise, it amounts to the **defeat of the government.**

6 This inaugural speech of the President is an occasion available to the members of Parliament to **raise discussions and debates to examine and criticise the government** and administration for its lapses and failures.

MOTIONS

NO-DAY-YET-NAMED MOTION



- 1 It is a motion that has been admitted by the Speaker but no date has been fixed for its discussion.
- 2 The Speaker, after considering the state of business in the House and in consultation with the leader of the House or on the recommendation of the Business Advisory Committee, allots a day or days or part of a day for the discussion of such a motion.

DEVICES OF PARLIAMENTARY PROCEEDINGS

POINT OF ORDER



- 1 A member can raise a point of order when the proceedings of the House **do not follow the normal rules of procedure.**

- 2 A point of order should relate to the **interpretation or enforcement of the Rules of the House or such articles of the Constitution** that regulate the business of the House and should raise a question that is within the cognizance of the Speaker.

- 3 It is usually **raised by an opposition** member in order to control the government.

- 4 It is an **extraordinary device** as it suspends the proceedings before the House. **No debate** is allowed on a point of order.

HALF-AN-HOUR DISCUSSION



- 1 It is meant for discussing a matter of sufficient public importance, which has been subjected to a lot of debate and the answer to which needs elucidation on a matter of fact.
- 2 The Speaker can allot three days in a week for such discussions. There **is no formal motion or voting before the House.**

SHORT DURATION DISCUSSION



- 1 It is also known as **two-hour discussion** as the time allotted for such a discussion **should not exceed two hours**.
- 2 The members of the Parliament can raise such discussions on a matter of **urgent public importance**.
- 3 The Speaker can allot **two days in a week** for such discussions.
- 4 There is neither a formal motion before the house nor voting. **This device has been in existence since 1953.**

SPECIAL MENTION



Notice Under Rule 377

- 1 A matter which is not a point of order or which cannot be raised during question hour, half-an hour discussion, short duration discussion or under adjournment motion, calling attention notice or under any rule of the House can be raised under the Special Mention in the **Rajya Sabha**.
- 2 Its equivalent procedural device in the Lok Sabha is known as '**Notice (Mention) Under Rule 377**'.

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